

// inbound copyright · anything built for the platform

Contractor IP Assignment

Contractor IP Assignment Deed

Body Recode — inbound copyright/IP protection Draft v0.1 — For legal review only. Not for execution.

Purpose: closes the *inbound* IP chain. In Australia a contractor owns the copyright in what they create **by default — not the hirer** — until assigned. Each developer, designer, or content contributor who has done (or will do) work for Body Recode signs this so that **all IP, including copyright, vests in Kade Dunstone**. This is what makes the “Body Recode owns the IP” warranty to partners true. Signed **once per contributor**, covering **past and future** work.

PARTIES

Kade Robert Dunstone, trading as **Body Recode**, ABN 90 535 525 708, of [Brisbane address — to be confirmed], Queensland, Australia (**Owner**)

[ENTITY NOTE: if a Pty Ltd is incorporated and holds/licenses the IP, confirm whether the assignee should be Kade personally (recommended, to match the personal-ownership structure) or the company. See package cover note.]

[Contractor name / entity] ABN/ACN [___] of [address] (**Contractor**)

01 BACKGROUND

A. The Contractor has provided and/or will provide services to the Owner in connection with Body Recode, which may include software development, design, prompt/doctrine authoring, content, or brand assets (the **Services**).

B. Anything created by the Contractor in providing the Services (the **Deliverables**) may attract intellectual property rights, including copyright.

C. The Owner and the Contractor intend that all such intellectual property vests in the Owner. This deed records that assignment, for work done both before and after the date of signing.

02 OPERATIVE PROVISIONS

03 1. DEFINITIONS

Background IP means intellectual property owned or licensed by the Contractor that exists independently of the Services (e.g. the Contractor's general tools, libraries, frameworks, and know-how), and any third-party open-source or licensed components.

Deliverables means all materials, works, and outputs created, developed, or contributed by the Contractor in the course of, or in connection with, the Services — including source code, configuration, prompts, doctrine content, written content, designs, graphics, brand assets, and documentation.

Intellectual Property Rights means all rights in copyright, designs, trade marks, patents, circuit layouts, confidential information, trade secrets, and all other intellectual property rights, whether registered or unregistered, anywhere in the world, and whether existing now or in the future.

Moral Rights means the rights of attribution, against false attribution, and of integrity of authorship under Part IX of the Copyright Act 1968 (Cth).

04 2. ASSIGNMENT OF INTELLECTUAL PROPERTY

2.1 The Contractor **assigns to the Owner, absolutely and for all time, all Intellectual Property Rights in the Deliverables**, throughout the world, including all such rights created **before** and **after** the date of this deed in connection with the Services. Future rights vest in the Owner automatically on their creation.

2.2 The assignment in clause 2.1 is full, unconditional, and includes the exclusive right to use, reproduce, modify, adapt, sublicense, commercialise, and create derivative works, and the right to take action for past infringement.

2.3 The Contractor holds on trust for the Owner any Intellectual Property Right in the Deliverables that does not vest in the Owner by operation of clause 2.1, until it is formally assigned or transferred.

05 3. BACKGROUND IP

3.1 The Contractor retains ownership of its Background IP. This deed does not assign Background IP.

3.2 To the extent any Background IP is incorporated into or necessary to use the Deliverables, the Contractor grants the Owner a **perpetual, irrevocable, worldwide, royalty-free, sublicensable**

licence to use it as part of the Deliverables. *[LEGAL REVIEW: confirm scope; ensure any third-party/open-source components are compatible with this and disclosed.]*

06 4. MORAL RIGHTS CONSENT

4.1 Moral Rights cannot be assigned. To the extent permitted by law, the Contractor (and, where the Contractor is an entity, each individual author it engages) **consents** to the Owner and its licensees doing, or omitting to do, any act that would otherwise infringe the Contractor's Moral Rights in the Deliverables — including using the Deliverables without attribution, and modifying, adapting, or combining them.

4.2 Where the Contractor is an entity, it will procure equivalent written Moral Rights consents from each of its personnel who authored any Deliverable.

07 5. FURTHER ASSURANCES

5.1 The Contractor will, at the Owner's request and cost, promptly do all things and sign all documents reasonably necessary to perfect, register, or give full effect to the assignment and licences in this deed (including any further assignment).

08 6. WARRANTIES

6.1 The Contractor warrants that: (a) it has the right to assign the Intellectual Property Rights and grant the licences in this deed; (b) the Deliverables are original to the Contractor and, to the best of its knowledge, do not infringe any third party's Intellectual Property Rights; (c) any third-party or open-source components in the Deliverables have been disclosed to the Owner and are licensed on terms compatible with the Owner's use and the assignment; and (d) it has not previously assigned or encumbered the Intellectual Property Rights in the Deliverables.

09 7. CONFIDENTIALITY

7.1 The Contractor will keep confidential all of the Owner's confidential information (including the engine, doctrine, prompts, and platform) and will not use or disclose it except to provide the Services. This obligation survives termination indefinitely for trade secrets.

10 8. CONSIDERATION AND NATURE

8.1 This deed is entered into in consideration of the fees paid and payable to the Contractor for the Services, and the mutual promises in it.

8.2 This deed is executed as a **deed**, so that it is binding whether or not further consideration is given, including in respect of Deliverables already created and paid for.

11 9. GENERAL

9.1 **Governing law.** Queensland, Australia. Exclusive jurisdiction of the Queensland courts.

9.2 **Entire agreement.** This deed is the entire agreement on its subject matter and supersedes prior understandings on that subject matter. It does not limit any assignment or confidentiality obligation already owed by the Contractor.

9.3 **Amendment, severability, counterparts, waiver.** Standard.

12 EXECUTION

Executed as a deed

Kade Dunstone t/a Body Recode (Owner)

Signature: _____ Date: _____

[Contractor]

If an individual: Signature: _____ Name: _____ Date: _____

If a company (s127 Corporations Act): Director signature: _____ Name: _____
Date: _____

[LEGAL REVIEW: retain the correct execution block for whether the contractor is an individual, company, or trust.]

13 SCHEDULE — SERVICES / PERIOD COVERED (optional)

Brief description of the Services and the period they cover (e.g. "development work on the Body Recode platform from [date] to present, and ongoing"). Leaving this broad is intentional — the assignment covers all Deliverables in connection with the Services regardless.

END OF CONTRACTOR IP ASSIGNMENT DEED — v0.1 DRAFT

Related: `IP_PROTECTION_MAP.md`, `COVER_NOTE_TO_LEGAL.md`